

## **PHOTOS AND OTHER RECORDINGS - CONSENT AND RELEASE**

Parties

### **AGREEMENT**

#### **1. Interpretation**

In this document unless the contrary intention appears:

1. a reference to **EYD** includes Empower Your Destiny and its Trainer(s) and all employees, officers, agents, contractors and affiliates of Empower Your Destiny, including all employees, officers, agents, contractors and affiliates of EYD.
2. a reference to **"Seminars"** means any one or more seminar, course, workshops, masterclasses, training or event conducted by Empower Your Destiny and its Trainer(s);
3. a reference to **"participating in the Seminars"** includes attendance at any one or more of the Seminars and any graduation ceremony for the relevant Seminar;
4. a reference to **"Recordings"** includes photographs or video or audio or any combination of them stored, recorded or captured on video, audio or digital media as well as posted on the internet, on our websites and Social Media.

#### **2. Acknowledgments and consents**

I hereby:

1. consent to, and authorize, Empower Your Destiny and its Trainer(s) to create Recordings of me in the course of participating in the Seminars for occupational health and safety purpose, and for Empower Your Destiny internal use only;
2. consent to any Recordings of me created by Empower Your Destiny and its Trainer(s) in the course of my participation in the Seminars being changed, edited, added to, taken from, placed or adapted in any manner or context by Empower Your Destiny and its Trainer(s);
3. consent to the incorporation into the Recordings of any material or works (to the extent that I own or control any rights in it) which I have performed or made available to Empower Your Destiny and its Trainer(s);
4. acknowledge that Empower Your Destiny and its Trainer(s) owns and shall own all rights, title and interest (including copyright) in the Recordings including any modified version of the Recordings;
5. assign any copyright in any Recordings of me made by Empower Your Destiny and its Trainer(s) in the course of participating in the Seminars;
6. acknowledge that Empower Your Destiny and its Trainers is not obliged to use the Recordings internally for feedback and customer services purpose; and
7. agree that no further payments will be paid to me for any profits or revenues or any other value derived from the exploitation of the Recordings, whether by way of compensation or otherwise.

#### **3. Release and Indemnity**

I hereby:

1. warrant that I have the personal and legal capacity to enter into this release and that the terms of the release do not conflict with any existing commitment on my part;
2. release Empower Your Destiny and its Trainer(s) from any claims made by me or anyone on my behalf arising from exploitation of the Recordings by Empower Your Destiny and its Trainer(s), including any claim for defamation;
3. indemnify Empower Your Destiny and its Trainer(s) in respect of liability arising from any claim made by any person in connection with the exploitation of Recordings of me created by Empower Your Destiny and its Trainer(s) in the course of my participation in the Seminars, including any claim for defamation;
4. acknowledge that this release is irrevocable and agree that under no circumstances will I be entitled to revoke any rights granted under this release or to apply for an injunction against Empower Your Destiny and its Trainer(s) or any other third party in relation to the completion, distribution, exhibition, broadcasting, advertising or other means of exploitation of the Recordings; and
5. acknowledge that this release will apply in perpetuity throughout the world.

4. Whole Agreement

Except for as set out in the document titled **PARTICIPATION CONSENT and RELEASE**, this document:

1. records the entire agreement between parties in relation to the Recordings; and
2. supersedes all previous negotiations, understandings or agreements.

5. Government law and jurisdiction

1. This document is governed by the laws of Victoria.
2. The parties submit to the jurisdiction of its courts.

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|--------------------------------------------|----------------|
| Empower Your Destiny (ABN 23604148094) and | Parveen Bhatia |
| Participant Name:                          | Parveen Bhatia |
| Date:                                      | 2026-02-18     |
| Agreement                                  | Accepted       |

Signature

Signature

Signature found or type unknown